

Cornwall Council

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Application number: PA25/06277

Agent: Mrs Chloe Pitt
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Applicant: Mr. and Mrs. Johns
c/o agent Rose Cottage
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Penzance
TR20 8TW
Cornwall

**Town And Country Planning Act 1990 (as amended)
Town And Country Planning (Development Management Procedure) (England)
Order 2015**

Notice of Refusal of Outline Planning Permission

CORNWALL COUNCIL, being the Local Planning Authority, **HEREBY REFUSES PERMISSION**, for the development proposed in the following application received on 18 August 2025 and accompanying plan(s), for the reasons set out on the attached schedule:

Description of Development:	Outline Planning Application with all matters reserved for the Proposed Erection of a Self-Build Dwelling
Location of Development:	Land At Reeves Close Porthleven TR13 9PB
Parish:	Porthleven

YOUR ATTENTION IS DRAWN TO THE ATTACHED NOTES.

DATED: 27 October 2025

Louise Wood - Service Director Planning
and Housing (Chief Planning Officer)

REASON:

The proposed development would result in the permanent loss of an area of designated public open space that has been provided and maintained for informal recreation and community use since the original development of Reeves Close. The site meets the definition of open space in the National Planning Policy Framework (NPPF) and continues to provide accessible green infrastructure of public value. The LPA does not consider it has been adequately demonstrated that the open space is surplus to requirements, or the loss would be replaced by equivalent or better provision in terms of quantity and quality in a suitable location. Accordingly, the proposal fails to satisfy the relevant tests set out in paragraph 104 of the National Planning Policy Framework (NPPF). The development would also conflict with policies 13, 16 and 25 of the Cornwall Local Plan Strategic Policies 2010-2030 and policies C1 and G1 of the Climate Emergency Development Plan Document 2023, which seek to protect and enhance open space and green infrastructure for the health, wellbeing and resilience of communities. The harm arising from the loss of this open space would significantly and demonstrably outweigh the limited benefits of delivering a single dwelling in this location, even when applying the presumption in favour of sustainable development under paragraph 11 of the National Planning Policy Framework (NPPF).

DATED: 27 October 2025

Louise Wood - Service Director Planning
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RELEVANT PLANNING POLICIES:

Cornwall Local Plan Strategic Policies 2010-2030 (Adopted 22nd November 2016)

Policy 1 Presumption in favour of sustainable development
Policy 2 Spatial Strategy
Policy 2a key targets
Policy 3 Role and function of places
Policy 12 Design
Policy 13 Development standards
Policy 16 Health and wellbeing
Policy 21 Best use of land and existing buildings
Policy 22 European protected sites
Policy 23 Natural environment
Policy 25 Green infrastructure
Policy 27 Transport and accessibility

Climate Emergency Development Plan Document

Policy C1 - Climate Change Principles
Policy G1 - Green Infrastructure Design and Maintenance
Policy G2 - Biodiversity Net Gain
Policy T1 - Sustainable Transport
Policy T2 - Parking

National Planning Policy Framework 2024

Section 1. Introduction
Section 2. Achieving sustainable development
Section 4. Decision-making
Section 5. Delivering a sufficient supply of homes
Section 8. Promoting healthy and safe communities
Section 9. Promoting sustainable transport
Section 11. Making effective use of land
Section 12. Achieving well-designed places
Section 14. Meeting the challenge of climate change, flooding and coastal change
Section 15. Conserving and enhancing the natural environment

Planning Practice Guidance

Cornwall Design Guide 2021

Cornwall Site Allocations Development Plan Document (Adopted November 2019)

European Sites Mitigation Supplementary Planning Document 2021

Porthleven Neighbourhood Plan - June 2021:

Policy HO1: Housing Location
Policy HO2: Housing Sizes and Mix
Policy BE1: Design Principles
Policy P1: Parking

DATED: 27 October 2025

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SCHEDULE ATTACHED TO APPLICATION & DECISION NO: PA25/06277

Policy NE3: Open Spaces - Provision and Protection

PLANS REFERRED TO IN CONSIDERATION OF THIS APPLICATION:

Site/location Plan PJ/02 received 18/08/25

ANY ADDITIONAL INFORMATION:

- Please note that the proposed development set out in this application would have been liable for a charge under the Community Infrastructure Levy (CIL) Regulations 2010 (as amended) if planning permission had been granted. Therefore, if an appeal is lodged and subsequently allowed, the CIL liability will be calculated and applied accordingly.

The Local Planning Authority has acted positively and proactively in determining this application by identifying matters of concern with this proposal. On this occasion, the issues are so fundamental that it is not possible to negotiate a satisfactory way forward due to the harm that has been clearly identified within the reason(s) for refusal.

DATED: 27 October 2025

Louise Wood - Service Director Planning
and Housing (Chief Planning Officer)

NOTES

Appeals to the Secretary of State

If the applicant is aggrieved by the decision of the local planning authority to refuse permission for the proposed development or to grant it subject to conditions, then they may appeal to the Secretary of State under section 78 of the Town and Country Planning Act 1990. If you want to appeal, then you must do so within 6 months of the date of this notice (or 12 weeks from the date of this notice in the case of householder appeals made in relation to applications submitted on or after 6 April 2009). Appeals must be made to the Planning Inspectorate using a form which can be obtained from the Planning Inspectorate at Temple Quay House, 2 The Square, Temple Quay, Bristol BS1 6PN or online at <https://www.gov.uk/appeal-planning-decision>. A copy of the completed appeal form must also be submitted to the Council.

Please Note:- If you intend to submit an appeal that you would like examined by inquiry then you must notify the Local Planning Authority and Planning Inspectorate (inquiryappeals@planninginspectorate.gov.uk) at least 10 days before submitting the appeal.

Further details are on GOV.UK.

(<https://www.gov.uk/government/collections/casework-dealt-with-by-inquiries>).

The Secretary of State can allow a longer period for giving notice of an appeal, but he will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal. The Secretary of State need not consider an appeal if it seems to him that the local planning authority could not have granted planning permission for the proposed development or could not have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.

In practice, the Secretary of State does not refuse to consider appeals solely because the local planning authority based their decision on a direction given by him.

Purchase Notices

If either the local planning authority or the Secretary of State refuses permission to develop land or grants it subject to conditions, the owner may claim that he can neither put the land to a reasonably beneficial use in its existing state nor render the land capable of a reasonably beneficial use by the carrying out of any development which has been or would be permitted.

In these circumstances, the owner may serve a purchase notice on Cornwall Council. This notice will require the Council to purchase his interest in the land in accordance with the provisions of Part VI of the Town and Country Planning Act 1990.

If this is a decision on a planning application relating to the same or substantially the same land and development as is already the subject of an enforcement notice, if you want to appeal against your local planning authority's decision on your application, then you must do so within 28 days of the date of this notice. If an enforcement notice is served relating to the same or substantially the same land and development as in your application and if you want to appeal against your local planning authority's decision on your application, then you must do so within 28 days of the date of service of the enforcement notice.